

young female, and imprisoning her in a place called the Spinning House, and compelling her to take off her clothes and put on a prison dress, — the defendant pleaded that, the proctors of the university, acting under the authority of the charter of the university (confirmed by act of parliament), having, upon a certain scrutiny, search, and inquiry in the town and suburbs of Cambridge, found the plaintiff and divers other women assembled together in a certain carriage in company with certain scholars of the university, in a certain public street in the said town, and then reasonably suspecting the plaintiff of evil, that is to say, of being in company with the said scholars for idle, disorderly, and immoral purposes, had as officers of the university, and by command of the chancellor, &c., arrested and apprehended the plaintiff, and brought her before the defendant, then being the vice-chancellor of the university, in order for her examination touching and concerning the premises: whereupon the defendant did then and there examine the plaintiff, and was thereupon satisfied of the matters aforesaid, and that the plaintiff had so been in company with the said scholars for idle, disorderly, and immoral purposes, wherefore the defendant caused the plaintiff to be punished by the imprisonment of her body for a reasonable time in that behalf, to wit, &c., in the place in the declaration mentioned, being a fit and proper and convenient place in that behalf; and that the compelling the plaintiff to take off her clothes, &c., was part of the reasonable discipline of the said place of confinement then usual, &c. — By the charter, which was put in, the chancellor, &c. of the university were empowered “*per seipos, aut per eorum deputatos, officarios, servientes, et ministros, seu per eorum aliquem sive aliquos, de tempore in tempus ad omnia tempora, tam in die quam in nocte, ad eorum beneplacitum, ex nunc in perpetuum, ad faciendum scrutinium, scrutationem, et inquisitionem, tam per diem quam per noctem, quotiescunq. et quandocunq. eis videbitur, expedire in prædictâ villâ Canteburgiæ, et in suburbis ejusdem, &c., de et pro omnibus et publicis mulieribus, prouhis, vagabondis, et aliis personis de malo suspectis, ad dictam villam et suburbia, ferias, mereatus, nundinas et loca prædicta, seu ad eorum aliquem venientes seu confluentes; ac omnes et singulas illas personas quas iidem cancellariis, magistri, et scholares, aut eorum successores, aut eorum deputati, officarii, servientes, et ministri, seu eorum aliqui seu aliquis, super aliquod hujusmodi scrutinium, scrutationem, sive inquisitionem, reas seu suspectas de malo, invenerint puniendi per imprisonment corporum suorum, banitionem, et aliter, prout cancellario dictæ universitatis Canteburgiæ, aut ejus vicemgerenti pro tempore existenti videbitur punire.*” &c. — The plaintiff and several other young women, residents of Cambridge, being found by certain proctors of the university in an omnibus, in the town, in company with certain undergraduates, proceeding to a dance at a village a short distance from Cambridge, took the females to the Spinning House, the usual place of confinement of the university. The plaintiff was there taken before the defendant (the vice-chancellor), who questioned her as to her residence and occupation, and as to who invited her to the party, &c., and ultimately, — without hearing any evidence upon oath, or making any inquiry about the plaintiff of certain persons to whom she wished to refer, and without any warrant in writing, — committed her to the Spinning-House for fourteen days, where she was deprived of her clothes, and forced to wear the prison dress. It was admitted that the defendant, throughout the proceeding complained of, acted *bonâ fide* and according to the best of his judgment and discretion. — Upon these facts, the following questions were submitted to the jury, — first, whether the proctor and the vice-chancellor had reasonable cause of suspicion that the plaintiff was in company with the undergraduates for idle, disorderly, and immoral purposes, — secondly, whether the vice-chancellor duly heard and examined the plaintiff, — thirdly, whether the place of imprisonment and the treatment of the plaintiff therein were proper and reasonable. — The jury found that the proctors had reasonable cause for suspicion; that the defendant had not made due inquiry into the plaintiff's character, and that the punishment was undeserved; but that the complaint of the prison and the treatment therein was unfounded: Held, that, upon this finding, the defendant was entitled to the verdict; for that, as the charter in express terms invested the vice-chancellor with authority to punish by imprisonment or otherwise as he should think fit, he thereby became invested with judicial authority, and a judge of a court of record, and entitled to all the protection attached by law to the judicial office. — Held also, that the jurisdiction to hear and determine and pass